

**IN THE COURT OF THE XI ADDL. CITY CIVIL & SESSIONS JUDGE,
BENGALURU CITY (CCH-8)**

PRESENT

**SRI. B.DASARATHA, B.A., LL.B.,
XI Addl. City Civil & Sessions Judge,
Bengaluru City.**

DATED THIS THE 23rd DAY OF FEBRUARY, 2026

Execution Petition No.842/2023

Decree-holder:

**Sri. Rohitash Kumar,
S/o. Prabhoo Dayal Kumar,
Aged about 42 years,
Proprietor:- M/s. J.J.M. Enterprises,
68, Jakkur Layout,
2nd Cross, Jakkur Post,
Bangalore – 560 064**

(By Adv. Sri. Laxmikantha K.B.)

v.

Judgment-debtors:

- 1. M/s. Mantri Developers Private Limited,
No.41, Mantri House, Vittal Mallya Road,
Bangalore – 560 001,
Represented by its Managing Director
Sushil Pandurang Mantri.**
- 2. M/s. Castles Vista Private Limited,
(Earlier known as M/s. Mantri
Castles Private Limited)
No.41, Mantri House, Vittal Mallya Road,**

Bangalore – 560 001,
 Represented by its Director
 Hebbur Satyanarayanagupta &
 Girish Guptha

(Absent)

Provision under which the application is filed	:	Section 151 of CPC
Relief sought for	:	Recall the Order dated 10.06.2025 and permission to file objections to I.A. No.2
Date on which the application is filed	:	17.09.2025
Number of the application	:	I.A. No.3
Date on which the objections are filed by different opponents	:	-
Date on which orders were passed on the said application	:	23.02.2026
Stage of filing of IA	:	To hear on I.A. No.2

ORDERS ON I.A. No.3

This is an application filed by the decree-holder under Section 151 of CPC, seeking recall of the Order dated 10.06.2025 and permission to file objections to I.A. No.2.

2. The decree-holder has contended in the accompanying memorandum of facts that the objections to I.A.

No.2 could not be filed earlier as the parties were engaged in discussions for amicable settlement. It is stated that since the settlement talks failed, the decree-holder intends to file objections on merits. It is further contended that serious objections are available against I.A. No.2 and no prejudice would be caused to the judgment-debtors if the present application is allowed, whereas refusal would cause irreparable loss to the decree-holder. On these grounds, prays to allow the I.A.

3. The records disclose that the objections were not filed on the earlier date and the matter was posted for hearing. Thereafter, the present application under Section 151 of CPC was filed seeking recall of the earlier order. Order sheet further reveals that sufficient opportunity was given to the judgment-debtors to file objections to I.A. No.3. The matter was subsequently heard on both sides and posted for orders.

4. The relief sought is only to recall the earlier order and to permit filing of objections to I.A. No.2. The explanation offered by the decree-holder that the parties were attempting an amicable settlement appears to be a plausible reason. The

proceedings are still at the stage of consideration of I.A. No.2. No serious prejudice would be caused to the judgment-debtors if the decree-holder is permitted to file objections, whereas refusal may result in denial of opportunity to contest the application on merits. The courts are expected to decide matters on merits rather than on technicalities. In view of the above circumstances, this court is of the opinion that sufficient cause is made out to exercise inherent powers under Section 151 of CPC. Hence, proceed to pass the following;

ORDER

I.A. No.3 filed by the decree-holder under
Section 151 of CPC is **allowed**.

Order dated 10.06.2025 is hereby **recalled**.

The objection filed by the decree-holder to
I.A. No.2 is taken on record.

No order as to costs.

(Dictated to the Stenographer Grade-I directly on
computer, typed by her, corrected and then pronounced by me,
in the open court, this the 23rd day of February, 2026)

(B.DASARATHA)
XI ADDL. CITY CIVIL & SESSIONS JUDGE
BENGALURU CITY.